

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, DECEMBER 19, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JANE DOE vs. KENNY CHIROPRACTIC; ET AL.
Case No. CU24-00050**

Motion to Amend Complaint to Substitute Successors in Interest

TENTATIVE RULING

The motion to substitute Robert Rader, as a successor in interest to Plaintiff, who died on May 23, 2025, as the plaintiff in the action is granted.

“[T]he right of a personal representative [or a successor in interest] to be substituted for a deceased party is absolute if the cause of action survives death.” (*Pepper v. Superior Court* (1977) 76 Cal.App.3d 252, 260.) “On motion after the death of a person who commenced an action or proceeding, the court ***shall*** allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, ***by the decedent’s successor in interest.***” (Code Civ. Proc. § 377.31, emphases added.)

**MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.
Case No. CU**

Motion to Deem Matters Admitted

TENTATIVE RULING